

The Solvent-Extracted Oil, De-Oiled Meal, and Edible Flour (Delegation of Powers) Order, 1968

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The Solvent-Extracted Oil, De-Oiled Meal, and Edible Flour (Delegation of Powers) Order, 1968

UNION OF INDIA

India

The Solvent-Extracted Oil, De-Oiled Meal, and Edible Flour (Delegation of Powers) Order, 1968

Rule

THE-SOLVENT-EXTRACTED-OIL-DE-OILED-MEAL-AND-EDIBLE-FLOUR-DELEGATION-OF-POWERS-ORDER-1968
of 1968

Published on 9 October 1972

Commenced on 9 October 1972

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The Solvent-Extracted Oil, De-Oiled Meal, and Edible Flour (Delegation of Powers) Order, 1968

Published vide Notification Gazette of India Extraordinary Part 2, Section 3(1), dated 9th October, 1972.

G.S.R. 1864, dated 9th October, 1968 . - In exercise of the powers conferred by Clause 15 of the Solvent-extracted Oil, De-oiled. Meal and Edible Flour (Control) Order, 1967, the Central Government hereby makes the following Order, namely:

1.

Short title and commencement

(1)

This Order may be called the Solvent-Extracted Oil, De-oiled Meal and Edible Flour (Delegation of Powers) Order, 1968.

(2)

It shall come into force at once.

2.

Delegation of powers of inspection, entry, search and sampling.

- The powers conferred on the Vegetable Oil Products Controller for India under Clause 12 of the Solvent-Extracted Oil, De-oiled Meal and Edible Flour (Control) Order, 1967 (hereinafter referred to as the said Order), shall subject to the restrictions specified herein, be exercisable also by -

(a)

the officers of the Central Government specified in Part A of the First Schedule annexed hereto, in respect of the sub-clause of Clause 12 of the said Order mentioned against each officer, and

(b)

the officers specified in Parts B and C of the First Schedule in their respective jurisdiction in respect of sub-clauses (c), (d), (e) and (f) of Clause 1 of the said Order.

exercisable also by the officer mentioned in First Schedule.

3.

Authorization of laboratories for analysis of samples drawn.

- The samples of solvent oil-bearing material, solvent-extracted oil, de-oiled meal or edible flour drawn by the Controller and, in exercise of the powers delegated to them in Clause 2 of this Order, by the officers specified therein, shall be sent for analysis to the following laboratories which have been authorized by the Controller for the purpose, namely:

(a)

the appropriate laboratories specified in Part A of the Second Schedule annexed hereto, in so far as the requirement in item (ii) under para (d) of sub-clause (1) of Clause 13 of the said Order is concerned, and

(b)

the second laboratories specified in Part B of the Second Schedule, in so far as the requirement in sub-clause (3) of Clause 13 of the said Order is concerned.

4.

Repeal and saving.

- The Solvent-Extracted Oil, De-oiled Meal and Edible Flour (Delegation of Powers) Order, 1968 published with the notification of the Government of India in the Ministry of Food, Agriculture, Community Development and Co-operation No. G.S.R. 849, dated the 4th May, 1968, in Part II Section 3, Sub-section (i) of the Gazette of India, dated the 11th May, 1968, is hereby repealed except as respects things done or omitted to be done under the Order so repealed.

I

Part A ? Officers of the Central Government

1. The following officers of the Directorate of Sugar and Vanaspati, Ministry of Food, Agriculture, Community Development and Co-operation, namely:

(1)

The Chief Director

(2)

The Additional Chief Director

(3)

Directors, Deputy Directors and Assistant Directors

In respect of sub-clauses (a),(b)(c),(d),(e), W and (g) of Clause 12 of said Order.

(4)

The Research Chemist

(5)

Inspectors

2. The following officers of the Subsidiary Foods Division of the Department of Food, Ministry of Food, Agriculture, Community Development and C.- operation in so far as the inspection, entry and search and drawal of samples concern the manufacture of edible flour and stocks thereof, namely:

(1)

The Executive Director, Food and Nutrition Board

(2)

Deputy Technical Advisers and Assistant Technical Advisers

In respect of sub-clauses (c),(e) and (f) of Clause 12 of the said Order.

(3)

Inspectors

[Part B]

[Substituted by G.S.R. 1020 (E), dated 22d May, 1971.]

Officers of the State Governments

(in respect of sub-clause(c), (d), (e), (f)of Clause 12 of the said order)

State

Designation of Authority

(1)

(2)

Andhra Pradesh

1. Collectors and District Magistrates.2. District Revenue Officers.3. Revenue Divisional Officers and Sub-divisional Magistrates (Executive.)4. Commissioner of Civil Supplies.5. Police Officers not below the rank of Deputy Superintendent of Police.

Gujarat

1. Supply Officers and Revenue Officers not below the rank of Aval Karkun.2. Police Officers not below the rank of Sub-Inspector.

Kerala

1. District medical Officers of Health and Assistant District Medical Officers of health.2. Regional Food Inspectors.

Madras

1. Joint Director of Industries and Commerce (Chemical),Madras.2. Regional Deputy Directors of industries and Commerce.

Madhya Pradesh

1. Director, Deputy Directors and Assistant Directors of Food and Civil supplies and other officers of the Directorate of Food and Civil Supplies not below the rank of Inspector.2. Collectors, Deputy Collectors and Tahsildars.3. Iron and Steel Controller.4. Additional District Magistrate, Bhopal.

Maharashtra

1. Assistant Director of industries(Quality marketing) and industries officer (Chemicals), Bombay.2. Regional Deputy Director of Industries, industries officer and industries inspectors.

Mysore

1. Officers of the food and Civil supplies Department not below the rank of inspectors.

Rajasthan

1. Joint Director of industries(Chemicals)2. Assistant Directors of industries and District industries officers.

Uttar Pradesh

1. District Magistrate.2. Regional Food Controller and

Deputy Regional food controller.3. Provincial Marketing Officer (Food) and Regional Marketing Officers.4. District supply.5. The oil export to the Government and the research chemist.

West Bengal

1. Police Officers not below the rank of inspector.2. officers of the food and supplies department not below the rank of chief inspector.

Part C ? Officers of Administrations of Union Territories

(In respect to sub-clause (c), (d) , (e) and (f) of Clause 12 of the said Order)

Union Territory

Designation of authority

(1)

(2)

Dadra and Nagar Haveli Goa, Daman and Diu

1.Mamlatdar,

1. Collectors, Goa and Daman and

Civil Administrator, Diu.2. Director of Industries and Mines, Panaji.

Tripura

1. [Director of Food and Civil

Supplies and Deputy Controller (Supplies).]

[Substituted by G.S.R. 1020 (E), dated 22nd May, 1971.]

2. District

Controller (Food) and Deputy Controller (Food).3. Deputy Controllers Sub-Divisional Officers and Sub-Deputy Collectors (Additional Sub-Divisional Officers).4. Inspectors (Food and Supplies).

II

Part A ? Analysis of sample under Clause 13(1)(d)(ii)of the said Order.

Officers by whom sample drawn

Laboratory to which the samples should be sent for analysis

1.

The Vegetable Oil Products Controller for India.

Any of the laboratories specified in part A of yjis Schedule.

2.

Officers of the Directorate of Sugar and Vanaspati, Ministry of Food and Agriculture, Community Development and Co-operation, specified in Part A of the first Schedule.

Laboratory of the directorate of Sugar and Vanaspati at New Delhi.

3.

Officers of the Subsidiary Food Division of the Department of Food, Ministry of Food, Agriculture, Community Development and Co-operation, specified in Part A of the First Schedule

Any of the Labo of the Department of food situated at Delhi

Bombay and Coimbatore.

4.

Officers of the State Governments

specified in Part B of the First Schedule:

[Andhra Pradesh]

[Substituted by G.S.R. 1020 (E), dated 22nd May, 1971.]

GujaratKeralaMadrasMaharashtraMysoreRajasthanUttar Pradesh

Institute of preventive medicines Hyderabad.]

[Substituted by G.S.R. 1020 (E), dated 22nd May, 1971.]

Public Health

Laboratory Baroda.Government Analyst's laboratory

Trivandram.Chemical, testing and Analytical Laboratory Guindy

Madras.1. Industrial Research Laboratory Matunga Bombay.2.

Industrial Research Laboratory Ganesh Khind Poona.Food and

water analysis Laboratory Bangalore.Industrial Laboratory

Industrial Department Jaipur.Laboratory of the Harcourt

Butler Technological Institute, Kanpur.

5.

Officer of the Administrations of Union Territories specified

in Part C of the First Schedule:Dadra and Nagar Haveli Goa,

Daman and Diu.Tripura.

[Public Health Laboratory, Baroda.]

[Substituted by G.S.R. 1020 (E), dated 22nd May, 1971.]

The Oils and fats

Analysis Laboratory, Goa.Laboratory of the Directorate of

Sugar and Vansapati, Ministry of Food, Agriculture, Community

Development and Co-operation, New Delhi.

Part B ? Analysis of sample under Clause 13(3)of the said Order.

Officer by whom sample drawn.

All sample, regardless of by whom drawn

Second Laboratory to which the samples should be sent for analysis

Central Food laboratory ministry of Health and Family Planning Calcutta.

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